

26CHCP00288 26CHCP00288

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Case Number: 26CHCP00288 Hearing Date: September 23, 2026 Dept: F49

Dept. F49

Date: 9/23/26

Case Name: In the Matter of: Pamela Guillen

Case No. 26CHCP00288

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 23, 2026

PETITION FOR ORDER

PERMITTING PRE-LITIGATION INSPECTION AND PRESERVATION OF EVIDENCE

Los Angeles Superior

Court Case No. 26CHCP00288

Motion filed: 7/29/26

MOVING PARTY: Petitioner Pamela Guillen

RESPONDING PARTY: Respondents Six Flags

Entertainment Corporation and Magic Mountain, LLC

NOTICE: Incomplete

RELIEF REQUESTED: An order from this Court permitting the immediate inspection, testing, photographing, and preservation of evidence relating to the X2 rollercoaster located at Six Flags Magic Mountain.

TENTATIVE RULING: The Petition is DENIED.

BACKGROUND

This matter arises from injuries allegedly sustained by Petitioner Pamela Guillen ("Petitioner") while riding the X2 rollercoaster at Six Flags Magic Mountain on July 5, 2026. Petitioner alleges that the ride was unusually rough and that she lost consciousness shortly after the ride ended. (Pet., at p. 3.) She states that she underwent surgery for a subdural hematoma at Henry Mayo Newhall Hospital and has suffered severe, permanent brain damage. (Ibid.) On July 29, 2026, Petitioner filed the instant verified petition for an order permitting pre-litigation inspection and preservation of evidence (the "Petition").

On September 11, 2026, Respondents Six Flags Entertainment Corporation and Magic Mountain, LLC (collectively, "Respondents") filed an Opposition to the Petition.

ANALYSIS

Pursuant to Code of Civil Procedure section 2035.010, subdivision (a), "[o]ne who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state, whether as a plaintiff, or as a defendant, or in any other capacity, may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), for the purpose of perpetuating that person's own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed."

"The methods available for discovery conducted for the purposes set forth in Section 2035.010 are all of the following:
(a) Oral and written depositions. (b) Inspections of documents,

things, and places. (c) Physical and mental examinations.” (Code Civ. Proc., § 2035.020.)

A. Procedural Requirements

(1) Content of Petition

A person who desires to preserve evidence pursuant to section 2035.010 must file a verified petition “in the superior court of the county of the residence of at least one expected adverse party.” (Code Civ. Proc., § 2035.030, subd. (a).) The petition must set forth all of the following:

(1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California.

(2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought.

(3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.

(4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.

(5) The facts that the petitioner desires to establish by the proposed discovery.

(6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed.

(7) The name or a description of those whom the petitioner expects to be adverse parties so far

as known.

(8) The name and address of those from whom the discovery is to be sought.

(9) The substance of the information expected to be elicited from each of those from whom discovery is being sought.

(§ 2035.030, subd. (b).)

Here, the Petition has been verified by Petitioner and meets the foregoing content requirements. Petitioner states that she expects to be the plaintiff in a civil action arising out of the injuries she suffered on the X2 ride. (Pet., at p. 4.) The Petition further avers that the evidence sought by the Petition—specifically, the identity and mechanical condition of the specific train, car, and seat involved in the injury and their associated maintenance history—is required “to properly plead the claims before a complaint can reasonably be filed.” (Ibid.) The Petition describes the subject matter of the action and expected theories of liability, identifies the discovery methods Petitioner wishes to employ, and states the facts Petitioner wishes to establish and the reasons for preserving those facts. (Id., at pp. 4-5.) The Petition also names the expected adverse parties, identifies the parties from whom the discovery is being sought, and describes the substance of the information expected to be discovered. (Id., at pp. 5-6.) The requirements of section 2035.030 are accordingly met.

(2) Service of Petition

The petitioner must serve notice of the petition and a copy of the petition “on each natural person or organization named in the petition as an expected adverse party.” (Code Civ. Proc., § 2035.040, subd. (a).) “This service shall be made in the same manner provided for the service of a summons.” (Ibid.) “[S]ervice shall be effectuated at least 20 days prior to the date specified in the notice for the hearing on the petition.” (§ 2035.040, subd. (c).)

Here, Petitioner identifies the following entities as expected adverse parties: (1) Six Flags

Magic Mountain, (2) Six Flags Entertainment Corporation, (3) S&S Worldwide, Inc., (4) S&S Power, Inc., and (5) S&S Arrow, Inc. (Pet., at p. 5.) The Petition also describes “related entities responsible for the design, manufacture, ownership, operation, and/or maintenance of the X2 roller coaster” as expected adverse parties. (Ibid.)

The proof of

service filed by Petitioner, however, indicates that the notice of hearing and the Petition were only served on Magic Mountain LLC. As Respondents note in their Opposition, no proof of service has otherwise been submitted establishing service on S&S Worldwide, Inc., S&S Power, Inc., or S&S Arrow, Inc. Service is therefore insufficient under section 2035.040, which requires service on all expected adverse parties.

B. Grounds for Petition

Even if service

were proper, the Court finds that Petitioner fails to make the required showing under sections 2035.010 et seq.

“If the court

determines that all or part of the discovery requested under this chapter may prevent a failure or delay of justice, it shall make an order authorizing that discovery.” (Code Civ. Proc., § 2035.050, subd. (a).) A petitioner under sections 2035.010 et seq. must make a sufficient showing that perpetuation will prevent a “failure or delay of justice.” (Block v. Super. Ct. (1963) 219 Cal.App.2d 469, 478.)

“One shall not employ the procedures

of this chapter for purposes of either ascertaining the possible existence of a cause of action or a defense to it, or of identifying those who might be made parties to an action not yet filed.” (Code Civ. Proc., § 2035.010, subd. (b).) The perpetuation statute is meant to be used for the preservation of evidence. (§ 2035.010, subd. (a); Hunt-Wesson Foods, Inc. v. Stanislaus County (1969) 273 Cal.App.2d 92, 98.) “[I]t was not designed for purely discovery purposes,” and “use of the section for obtaining collateral information only should be denied.” (Id., at pp. 94, 98.)

Petitioner seeks

an order permitting inspection, testing, photographing, and preservation of

evidence related to the X2 rollercoaster at Six Flags Magic Mountain in Valencia, California. Petitioner contends that there is a risk evidence will be destroyed due to the amusement park's routine maintenance and operation of the rollercoaster. (Pet., at p. 6.) Petitioner specifically wishes to: (1) identify the specific train, car, and seat involved in the injury, (2) preserve that train and any components already removed from it, in their current condition, since the date of the incident, (3) compel production of maintenance records for that train since the date of the incident, and (4) inspect the ride. (Id., at pp. 6-7.)

Petitioner

expects the discovery to identify the specific train, car, and seat that was occupied by Petitioner when she rode the X2, reveal the mechanical condition of that train, car, and seat on the date of the incident, reveal the inspection and maintenance history of that train, and indicate whether Six Flags had notice that a mechanical defect or condition was developing that affected the ride's safety. (Pet., at p. 5.)

Respondents contend that the Petition violates the statute's prohibition against utilizing its procedures for investigative purposes, is based on the speculative declaration of Petitioner's counsel, and fails to establish good cause, omitting facts that undermine Petitioner's assertion of necessity. (Opp'n, at p. 3-7.)

As to the purpose

of the Petition, Petitioner states that her counsel "requires the evidence sought by th[e] Petition ... to properly plead the claims before a complaint can reasonably be filed." (Pet., at p. 4.) Petitioner thus indicates that she cannot presently bring the action because she lacks the evidence to appropriately plead her claims. As Respondents note, this suggests that the evidence is sought for the purpose of investigating the existence of possible causes of action, which is expressly prohibited by section 2035.010.

Further, even

while Petitioner frames the discovery as necessary to plead her claims, she does not adequately explain why she is unable to sue presently and proceed with ordinary discovery. The Petition indicates only that "Counsel requires the evidence," but does not state why the information specifically requested—the identity and maintenance history of the train, car, and seat involved in the incident—is necessary to bring Petitioner's claim.

Additionally, Petitioner's rationale for conducting the discovery is unsupported. Petitioner states that the evidence is sought now, prior to commencement of a civil action, because "it is uniquely susceptible to alteration or loss through Six Flags' ordinary maintenance operations." (Pet., at p. 5.) The only evidence offered in support, however, is the declaration of Petitioner's counsel, Christopher V. Bulone ("Bulone"). Bulone attests based on "information and belief" that "operators of major amusement rides such as X2 perform frequently, often daily, mechanical inspection and maintenance, which routinely includes inspecting trains, adjusting wheel assemblies, lubricating bearings, replacing wheels and bushings, tightening hardware, replacing restraint components, rotating trains into and out of service, and, when warranted, removing a train from service and sending it to maintenance for repair." (Bulone Decl., ¶ 4.) This is, as Respondents note, a generalized and speculative attestation that does not competently establish that X2's current status is operational and evidence is at risk of loss. It is particularly weak given Respondents' counsel's declaration that the ride was closed at the time the Petition was filed and remains closed. (Cherazaie Decl., ¶ 3.)

Based on the foregoing, the Court finds that Petitioner fails to establish that conducting this discovery prior to litigation will prevent a "failure or delay of justice."

CONCLUSION

Petitioner Pamela Guillens' petition for an order permitting pre-litigation inspection and preservation of evidence is DENIED.

Moving party to give notice.